

4. **25CV04454 Dunn-King, Keagan Milan v. Aegis Treatment Centers, LLC et al.**

EVENT: Defendant Aegis Treatment Centers LLC's Demurrer to Plaintiff's First Amended Complaint

Pursuant to the Exclusive Concurrent Jurisdiction doctrine, the case is stayed.

Defendants' request for judicial notice is granted.

Regarding the issue of abatement, the facts do not satisfy the requirement of "same parties" and "same cause of action". (CCP 430.10(c)) Accordingly the motion is denied on abatement grounds.

Although the rule of exclusive concurrent jurisdiction is similar in effect to the statutory plea in abatement [Code Civ. Proc., 430.10, subd. (c)], it has been interpreted and applied more expansively, and therefore may apply where the narrow grounds required for a statutory plea [in] abatement do not exist. (*Shaw v. Superior Court* (2022) 78 Cal.App.5th 245, 256) The rule is based upon the public policies of avoiding conflicts that might arise between courts if they were free to make contradictory decisions or awards relating to the same controversy and preventing vexatious litigation and multiplicity of suits. (*Id* at p. 255)

Here, there is a tremendous amount of overlap between the two cases. All of the wage and hour causes of action under the Labor Code asserted in the Stanislaus action are asserted in this action. It is true that there are additional causes of action in this case, including FEHA causes of action that are specific to this Plaintiff.

Nevertheless, if we do not stay the case the potential for conflicting rulings concerning the Labor Code claims is inescapable. This potential outweighs any prejudice to Plaintiff to the extent litigation of his individual claims might be delayed while the Stanislaus matter is pending.

Plaintiff makes a procedural argument that this is a demurrer and Defendants should have brought this as a motion to stay. A trial court is "free to consider the motion regardless of its label." (*Sole Energy Co. v. Petrominerals Corp* (2005) 128 Cal.App.4th 187, 193) Accordingly, the Court declines denying this motion on procedural grounds. A motion to stay would have technically been appropriate, but this issue needs to be dealt with expeditiously.

Defendants shall prepare and submit a form of order consistent with this ruling within 2 weeks.

5. **26CV01723 In re: Spittler, Sean**

EVENT: Change of name (minor)

There is no proof of publication on file. Additionally, CCP 1277(a)(4) requires the non-consenting parent be served with the petition a minimum of 30 days before the hearing. As of this writing there is no proof of service demonstrating the non-consenting parent has been served.

6. **26CV01833 In re: Karazidis, Ioannis**

EVENT: Change of name (adult)

There is no proof of publication on file. Upon the filing of the proof of publication, the Court will sign the decree provided.

7. **26CV01885 In re: Harrison, Courtney Ann**

EVENT: Change of name (adult)

The Court is in receipt of the proof of publication and will sign the decree provided.

8. **26CV02166 Connell, Zackary v. Gold Nugget Days Inc.**

EVENT: Motion for Preliminary Injunction

Motion for Preliminary Injunction is DENIED WITHOUT PREJUDICE.

Rule 3.1150. Preliminary injunctions and bonds

(a) Manner of application and service A party requesting a preliminary injunction may give notice of the request to the opposing or responding party either by serving a